

Opinion of the Court

cause a mistaken judicial interpretation of that supreme law is often “practically impossible” to correct through other means.⁶⁰ To balance these considerations, when it revisits a precedent this Court has traditionally considered “the quality of the decision’s reasoning; its consistency with related decisions; legal developments since the decision; and reliance on the decision.”⁶¹ In this case, each factor points in the same direction.

Start with the quality of the reasoning. Whether we look to the plurality opinion or Justice Powell’s separate concurrence, *Apodaca* was gravely mistaken; again, no Member of the Court today defends either as rightly decided. Without repeating what we’ve already explained in detail, it’s just an implacable fact that the plurality spent almost no time grappling with the historical meaning of the Sixth Amendment’s jury trial right, this Court’s long-repeated statements that it demands unanimity, or the racist origins of Louisiana’s and Oregon’s laws. Instead, the plurality subjected the Constitution’s jury trial right to an incomplete functionalist analysis of its own creation for which it spared one paragraph. And, of course, five Justices expressly rejected the plurality’s conclusion that the Sixth Amendment does not require unanimity. Meanwhile, Justice Powell refused to follow this Court’s incorporation precedents. Nine Justices (including Justice Powell) recognized this for what it was; eight called it an error.

Looking to *Apodaca*’s consistency with related decisions and recent legal developments compounds the reasons for concern. *Apodaca* sits uneasily with 120 years of preceding case law. Given how unmoored it was from the start, it might seem unlikely that later developments could have done more to undermine the decision. Yet they have. While

⁶⁰ *Payne v. Tennessee*, 501 U.S. 808, 828 (1991) (internal quotation marks omitted).

⁶¹ *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U.S. 230, 248 (2019).